REQUEST TO EXCLUDE CASE FROM ONLINE PUBLIC INDEX (COURTVIEW) UNDER ADMINISTRATIVE RULE 40(a) or AS 22.35.030

Under Alaska law, court case records are public unless an Alaska statute or court rule requires that they be sealed or made confidential. Public cases appear in the online public index (CourtView), unless there is an exception under Administrative Rule 40(a) or Alaska Statute 22.35.030 (these exceptions are listed below). The court system automatically removes these cases from public CourtView, but you may file this request form at your local trial court if you believe the court made an error and your case should be removed based on statute or rule. If you want to ask a judge to make your currently public case (or specific records within your case) confidential or sealed, use form TF-800. If you are asking only to remove your name (but not the whole case) from public CourtView, use form TF-805.

Name: Maria-Alejandra O'Shaughnessy-Whitfield Email*: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

* By providing an email address, you agree that the court and other parties can send court documents to you at this email address.

Address: 1188 Upper Hillside Loop Road, Apartment 14B, Fairbanks, Alaska 99709-2214 Phone: (907) 555-0199 ext. 4417

Case Name: _____ Case Number: 4FA-24-01188CR

The above case should be removed from the online public index (CourtView), because it is

1. ☐ A criminal case in which 60 days have passed since the date of acquittal or dismissal, **and**
   - Defendant was acquitted of all charges; **or**
   - all charges against Defendant were dismissed (including after suspended entry of judgment), and dismissal was **not** part of a plea agreement in another criminal case; **or**
   - all charges against Defendant were resolved by a combination of the above.
2. ☐ A criminal case that was dismissed, because
   - ☐ a judicial officer found no probable cause under Criminal Rule 4(a)(1) or 5(d).
   - ☐ Defendant was a minor and was wrongly charged in adult court with an offense within the jurisdiction for delinquency proceedings under AS 47.12.020.
3. ☐ A criminal **or** minor offense case that was dismissed, because
   - ☐ the prosecutor decided not to file a charging document.
   - ☐ there was an identity error under Criminal Rule 43(d) or Minor Offense Rule 11(c).
4. ☐ A criminal case in which Defendant (1) received a suspended imposition of sentence (SIS), (2) completed the terms of the sentence, **and** (3) was acquitted of (or had dismissed or set aside) all other charges in the same case. *[Attach proof of SIS and/or order setting aside.]*
5. ☐ A criminal or minor offense case in which **all** of the charges were one of the following underage alcohol offenses (or equivalent municipal ordinance): AS 04.16.049, AS 04.16.050, AS 04.16.060(g), AS 28.35.280, AS 28.35.285, or AS 28.35.290.
6. ☐ A criminal case in which Defendant (1) was convicted for possessing less than one ounce of marijuana, (2) was at least 21 years old at the time of offense, **and** (3) was not convicted of any other criminal charges in the same case. *[Conviction under current or prior version of AS 11.71.060 or equivalent municipal ordinance.]*
7. ☐ A domestic violence, stalking, or sexual assault protective order case that is closed, **and** no protective order was issued at any time in the case.
8. ☐ A domestic violence protective order issued by a United States (US) federal court, another state or territorial court of the US, a tribal court in the US, or a US military tribunal.
9. ☐ Confidential or sealed by judicial order under Admin. Rule 37.6. *[Attach copy of order.]*
10. ☒ Otherwise subject to removal from the public index by Alaska statute or court rule: Alaska Administrative Rule 40(a) *[List specific rule or statute number.]*

_____ _____

Date Signature

Instructions to Court Clerk: Email this request and final disposition order to the HelpDesk.

Response: ☐ Case removed from online public index. ☐ Case not removed from online public index.
Date sent to requestor: _____ by: _____ *[initials]*